

**STATE OF MICHIGAN
IN THE 14th CIRCUIT COURT FOR MUSKEGON COUNTY**

990 Terrace St, Muskegon, MI 49442
Hon. Judge Jenny McNeill

Andrew J. Pigors, Plaintiff/Respondent
1977 Whitehall Rd Trlr 17, Muskegon, Michigan 49445
231-903-5690

v.

Emily Watson, Defendant/Petitioner
2160 Garland Dr, Norton Shores, Michigan 49441
231-683-7107

Case No.: 2023-5907-PP

MOTION TO TERMINATE PERSONAL PROTECTION ORDER (PPO)

1. Introduction:

I, Andrew J. Pigors, hereby move this Honorable Court to terminate the Personal Protection Order (PPO) issued against me. The PPO has been misused by Emily Watson to obstruct communication necessary for co-parenting, harass me indirectly through third parties, and manipulate the legal process. Additionally, Emily Watson has made unsubstantiated claims, and the Court has demonstrated bias in accepting her allegations without objective evidence.

2. Grounds for Termination:

a. Full Compliance with the PPO:

I have fully complied with all conditions of the PPO since its issuance, as required by MCL 600.2950. There have been no violations, threats, or inappropriate contacts with Emily Watson. My communication has been strictly limited to matters related to our child, Lincoln David Watson (LDW).

b. Lack of Credible Evidence:

The PPO was issued based on unproven allegations. No substantial evidence has been presented to demonstrate a continuing threat or harm, which violates the principles set forth in MCL 600.2950 regarding the necessity of a PPO. There is no legal basis for the PPO to remain in effect.

c. Violation of the PPO by Emily Watson:

Emily Watson has violated the PPO by instructing her friend, Tamara Snider, to stalk and monitor my business, Pigs Projects, on the Nextdoor app. This conduct constitutes indirect harassment and is a clear violation of the order. Additionally, Emily's brother, Cody Watson, has issued threats via phone calls and texts, which have been reported to the police (See Exhibit 1D). Such actions contravene MCL 600.2950, which prohibits indirect harassment.

d. Hindrance of Co-Parenting Communication:

The PPO significantly obstructs my ability to communicate with Emily regarding Lincoln's health, education, and emotional well-being, as is necessary for co-parenting under MCL 722.23. This restriction is harming Lincoln's development and is contrary to the child's best interests, which is the primary consideration under Michigan law.

e. Attempts to Resolve Co-Parenting Issues via Mediation:

I have made good-faith efforts to resolve co-parenting issues through mediation by contacting a mediator who has attempted to arrange a meeting with Emily. However, Emily has refused to engage in this process. Her unwillingness to cooperate underscores her intent to use the PPO as a tool of manipulation rather than for legitimate protection (See Exhibit 1E for details of mediation attempts).

f. Unsubstantiated Accusation and Doctored Evidence Involving Austin Muratori at the PPO Violation Hearing:

During the PPO violation hearing, Emily Watson presented doctored screenshots of a conversation between me and Austin Muratori. The content of the alleged conversation was innocuous, involving a non-incriminating discussion about Austin taking the blame regarding money. However, Emily manipulated this evidence to create a false narrative. Furthermore, Austin has previously admitted that he acted under Emily's instructions to provide false information and gather details about me. This manipulation discredits the evidence Emily presented at the PPO violation hearing and further supports that the PPO is being misused for improper purposes.

g. Claims of Arsenic Poisoning:

Emily Watson falsely accused me of arsenic poisoning, which was entirely unfounded. No evidence supports this claim, further demonstrating her misuse of the legal system.

h. Glass Jar Incident:

Emily obtained a mason jar from my personal workbench that contained rubbing alcohol. This was among my personal belongings, which she accessed after I was served with an eviction notice, further showing her invasion of my privacy and intent to manipulate evidence.

i. Baby Monitor Camera:

Emily alleged that I used a baby monitor camera to record her. Even if true, this would not be grounds for a PPO, but the camera was among my personal possessions, which she accessed without consent.

j. False Allegations of Domestic Violence:

Emily alleged that I picked her up and threw her while standing on a table. This is physically impossible, as Emily weighed over 200 pounds at the time. I was merely reaching for my child because Emily was threatening to alienate me from him. Police and ambulance reports confirm that no signs of domestic violence or battery had occurred (See Exhibit 1F).

k. Verbal Assault Incident Post-Eviction:

After the eviction and the alleged incident, Emily and her father cornered me in the kitchen while I was holding LDW and verbally assaulted me for almost 10 minutes. During this time, they bizarrely repeated accusations and insults. I recorded the entire event on video and audio, which is available to the Court upon request. This incident further highlights the hostile and manipulative behavior directed at me, which is inconsistent with the need for a PPO.

l. Inadequate Representation by Attorney Mitzi Martini:

During my case, I was represented by attorney Mitzi Martini, who had an emotional breakdown while discussing case details. This affected her ability to properly represent me, as she allowed me to be questioned on the stand by the prosecutor without offering any defense or objections. Her failure to provide adequate representation caused significant harm to my case and undermined the fairness of the proceedings.

3. Requests for Relief:

For the reasons outlined above, I respectfully request that this Honorable Court:

1. Terminate the Personal Protection Order immediately pursuant to MCL 600.2950 and MCR 3.707, as it is being misused to obstruct co-parenting, harass me through third parties, and cause unnecessary emotional and reputational harm.

2. Admonish or Sanction Emily Watson for violating the terms of the PPO, including consideration of monetary sanctions or attorney's fees to compensate for the legal costs incurred due to her bad-faith misuse of the PPO process.
3. Implement specific co-parenting communication guidelines through a monitored platform (e.g., AppClose or Talking Parents) to ensure that future communication remains constructive and free from misuse of protection orders.
4. Prohibit Emily Watson from filing any future ex parte PPOs without presenting clear and convincing evidence of a genuine threat, and require a full hearing to determine the validity of any such claims.
5. Consider the failure of my previous counsel to properly defend me during critical moments of the case, and factor this into any decisions regarding the continued validity of the PPO.

Respectfully submitted,

Andrew J. Pigors
1977 Whitehall Rd Trlr 17, Muskegon, MI 49445
Phone: 231-903-5690
Email: Andrewjpigors@gmail.com

Exhibits for Motion to Terminate PPO:

Exhibit 1A: AppClose communication regarding Lincoln's behavior and developmental needs.

Exhibit 1B: AppClose communication regarding Lincoln's insurance and healthcare information.

Exhibit 1C: Screenshots from the Nextdoor app showing Tamara Snider's activity stalking my business, Pigs Projects.

Exhibit 1D: Police reports and text messages from Cody Watson, documenting threats made against me.

Exhibit 1E: Documentation of the mediator's attempts to contact Emily to resolve co-parenting issues.

Exhibit 1F: Police reports confirming that there were no signs of domestic violence or battery.

Exhibit 1G: Video and audio recording of the verbal assault by Emily and her father after the eviction.